The Kansas-Nebraska Act

33rd Congress · May 30, 1854

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> Senator Stephen Douglas's act let settlers in Kansas and Nebraska decide slavery by "popular sovereignty," repealing the Missouri Compromise line. It triggered a rush of pro- and anti-slavery settlers and the violence of "Bleeding Kansas."

Section 1 — the Territory of Nebraska

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That all that part of the territory of the United States included within the following limits, except such portions thereof as are hereinafter expressly exempted from the operations of this act, to wit: . . . be, and the same is hereby, created into a temporary government by the name of the Territory Nebraska; and when admitted as a State or States, the said Territory or any portion of the same, shall be received into the Union with or without slavery, as their constitution may prescribe at the time of the admission:

[. . .]

Section 19 — the Territory of Kansas; admission with or without slavery

SEC. 19. And be it further enacted, That all that part of the Territory of the United States included within the following limits, except such portions thereof as are hereinafter expressly exempted from the operations of this act, to wit, . . . be, and the same is hereby, created into a temporary government by the name of the Territory of Kansas; and when admitted as a State or States, the said Territory, or any portion of the same, shall be received into the Union with or without slavery, as their Constitution may prescribe at the time of their admission:

[. . .]

Section 32 — popular sovereignty and repeal of the Missouri Compromise

That the Constitution, and all laws of the United States which are not locally inapplicable, shall have the same force and effect within the said Territory of Kansas as elsewhere within the United States, except the eighth section of the act preparatory to the admission of Missouri into the Union, approved March sixth, eighteen hundred and twenty, which, being inconsistent with the principle of non-intervention by Congress with slavery in the States and Territories, as recognized by the legislation of eighteen hundred and fifty, commonly called the Compromise Measures, is hereby declared inoperative and void; it being the true intent and meaning of this act not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States: Provided, That nothing herein contained shall be construed to revive or put in force any law or regulation which may have existed prior to the act of sixth of March, eighteen hundred and twenty, either protecting, establishing, prohibiting, or abolishing slavery.

Words to know

to wit — namely; that is to say

prescribe — set down as a rule

locally inapplicable — not fitting the local situation

non-intervention — Congress staying out of the slavery question in states and territories

inoperative and void — no longer in force; canceled

domestic institutions — a territory's internal social arrangements, here meaning slavery